

**UNITED STATES INTERNATIONAL TRADE COMMISSION
WASHINGTON, D.C.**

In the Matter of

**CERTAIN DYNAMIC RANDOM ACCESS
MEMORY (DRAM) DEVICES, PRODUCTS
CONTAINING THE SAME, AND
COMPONENTS THEREOF (III)**

Investigation No. 337-TA-_____

(Docket No. 3930)

**PUBLIC INTEREST STATEMENT OF PROPOSED RESPONDENT
SUPER MICRO COMPUTER, INC.**

Proposed Respondent Super Micro Computer, Inc. (“SMCI”) responds to the Commission’s Notice, 91 Fed. Reg. 53278 (Aug. 17, 2026), soliciting comments regarding the complaint filed by Complainant Netlist, Inc. (“Netlist”). As detailed below, the Commission should decline to institute an investigation given the calamitous effects of Netlist’s requested remedial orders. If the Commission does institute, however, it should again delegate public interest fact-finding to the ALJ and assign OUII a role in developing the record.

This is Netlist’s third complaint in 11 months seeking exclusion of technology vital to AI applications and data center development—all amidst a global memory shortage that Netlist’s licensees Samsung and SK hynix expect to persist until 2030. Before it took a license, Samsung called out “Netlist’s true aim: to force Samsung into accepting extortionate demands on the threat of severely harming the United States.”¹ That is equally true of Netlist’s latest complaint, which targets Micron’s 25% global market share despite the well-documented lack of replacement manufacturing capacity.² The President has made clear that maintaining U.S. dominance in AI is both “the policy of the United States”³ and a “national security imperative.”⁴ Thus, while no investigation should be instituted, if the Commission disagrees, delegation should remain the norm.⁵

I. INTRODUCTION

SMCI embodies American innovation. Founded in San Jose in 1993, SMCI is a global leader in Application-Optimized Total IT Solutions. SMCI’s offerings include servers, AI systems, storage, IoT devices, switches, software, and support services. And, unique to SMCI, those offerings are overwhelmingly American: SMCI manufactures most of its systems at its San Jose headquarters and stands as the only major server, storage, and accelerated compute platform vendor that designs, develops, and manufactures a significant portion of its systems in the U.S.⁶ SMCI’s distinctive model enhances cybersecurity and advances

¹ Samsung PI Stmt. at 1, *Netlist II*, Inv. No. 337-TA-1511 (June 30, 2026) (Doc. ID 886642).

² Khac Phu Nguyen, *Micron Stock Jumps 6% as DRAM Market Share Expands*, Yahoo! Finance (Aug. 5, 2026), <https://finance.yahoo.com/markets/stocks/articles/micron-stock-jumps-6-dram-144511923.html>.

³ Exec. Order No. 14179, 90 Fed. Reg. 8741 (Jan. 31, 2025); *see also* Exec. Order No. 14409, 91 Fed. Reg. 34565 (June 5, 2026) (declaring it “the policy of the United States” to “promote AI innovation and security”).

⁴ The White House, *Winning the Race: America’s AI Action Plan* i (2025), <https://www.whitehouse.gov/wp-content/uploads/2025/07/Americas-AI-Action-Plan.pdf>.

⁵ Institution Notice, *Netlist II* (July 15, 2026) (Doc. ID 888137); Institution Notice, *Netlist I*, Inv. No. 337-TA-1472 (Dec. 29, 2025) (Doc. ID 867533).

⁶ Super Micro Computer, Inc., Annual Report (Form 10-K) 6, 35 (Aug. 28, 2025).

the bipartisan goal of reshoring tech and creating jobs and technology expertise in the U.S.⁷

Today, SMCI is at the forefront of the AI revolution. Its servers and computing systems, which depend on the accused Micron memory, are used primarily in AI and high-performance computing and serve the American market. SMCI's financial results bear this out: Net sales grew by 72.3% year-over-year for the nine months ended March 31, 2026 (from \$16.2 billion to \$27.9 billion), mainly due to fulfillment of orders to support data center deployment and increased sales for AI-related products of \$12.0 billion or 97.8% year-over-year, and U.S. customer sales accounted for 70.8% of SMCI's net sales for that same period.⁸

Data centers are the lifeblood of the digital economy—and modern society more broadly. They store, process, and distribute data in every sector, from financial services to healthcare to media to government.⁹ GenAI is the “fastest-growing advanced-AI use case,”¹⁰ but “[t]raditional enterprise workloads” such as file storage and transaction processing “represent the majority of data center power demand.”¹¹ Against this backdrop, “such IT infrastructure may . . . be deemed ‘a strategic national asset.’”¹²

In turn, preserving U.S. leadership in AI and data center development is among the President's top priorities. Executive Order 14179 declared it “the policy of the United States to sustain and enhance America's global AI dominance in order to promote human flourishing, economic competitiveness, and national security.” The President followed with a string of AI-focused Executive Orders, an AI Action Plan, a Cyber Strategy, and a National Policy Framework for AI, all directed at expediting the construction of U.S. data centers and promoting the manufacture and export of U.S. AI technology.¹³ Netlist's requested orders—

⁷ See *Made in the USA*, Super Micro Computer, <https://www.supermicro.com/en/solutions/made-in-usa>.

⁸ Super Micro Computer, Inc., Quarterly Report (Form 10-Q) 12, 46 (May 11, 2026).

⁹ See, e.g., *The cost of compute: A \$7 trillion race to scale data centers*, McKinsey Quarterly (Apr. 28, 2025), <https://www.mckinsey.com/industries/technology-media-and-telecommunications/our-insights/the-cost-of-compute-a-7-trillion-dollar-race-to-scale-data-centers>.

¹⁰ *What is a data center?*, McKinsey & Co. (July 29, 2025), <https://www.mckinsey.com/featured-insights/mckinsey-explainers/what-is-a-data-center>.

¹¹ Vivian Lee et al., *Breaking Barriers to Data Center Growth*, Boston Consulting Grp. (Jan. 20, 2025), <https://www.bcg.com/publications/2025/breaking-barriers-data-center-growth>.

¹² Ling Zhu, Cong. Rsch. Serv., IF12899, *Data Centers and Cloud Computing: Information Technology Infrastructure for Artificial Intelligence* (2025), <https://www.congress.gov/crs-product/IF12899>.

¹³ See Exec. Order No. 14409; Exec. Order No. 14318, 90 Fed. Reg. 35385 (July 28, 2025); Exec. Order No. 14320, 90 Fed. Reg. 35393 (July 28, 2025); *National Policy Framework: Artificial Intelligence* (Mar. 20,

which take aim at the supplier of 25% of the global DRAM market (Micron)¹⁴ and a company with an estimated 25% share of the AI infrastructure market (SMCI)¹⁵—would both undermine the President’s goals and harm the public. And if any exclusion order were to issue, it should be delayed until at least 2030 given supply constraints and the importance of the accused products to U.S. competitiveness in AI and data centers.

II. NETLIST’S REQUESTED RELIEF DISSERVES THE PUBLIC INTEREST

The accused SMCI products contain Micron’s DDR5 RDIMMs. They include SMCI servers and storage systems (*e.g.*, H13 and H14 GPU-optimized servers) that support AI training and inference at scale, high-performance computing (*e.g.*, scientific simulations, autonomous vehicles, high-frequency trading, quantum AI research, etc.), cloud computing, and 5G deployments. They are also integral to SMCI’s Data Center Building Block Solutions (“DCBBS”), a modular, rack-scale solution that enables rapid deployment of AI-ready data centers. Purchasers of these products include government bodies, global enterprises, telecom giants, and AI hyperscalers, and the technology they power touches every sector of the U.S. economy.

Netlist repeats its refrain from *Netlist I* and *Netlist II* that the requested remedial orders “do not raise any public health, safety, or welfare concerns” because “[a]ll of the accused products are directed towards commercial transactions and business use” and “serve no public health or welfare purpose.” Netlist PI Stmt. at 3 (Doc. ID 2605317). Just as in *Netlist I* and *Netlist II*, Netlist’s argument again is premised on an artificially narrow portrayal of how the accused products are used in the U.S.—one that ignores all end uses. And Netlist again refuses to acknowledge that the current Administration has expressed unequivocal support for U.S. AI development and data center construction, drawing a direct line to public safety and welfare.¹⁶

2026), <https://www.whitehouse.gov/wp-content/uploads/2026/03/03.20.26-National-Policy-Framework-for-Artificial-Intelligence-Legislative-Recommendations.pdf>; *President Trump’s Cyber Strategy for America* (Mar. 6, 2026), <https://www.whitehouse.gov/wp-content/uploads/2026/03/President-Trump’s-Cyber-Strategy-for-America.pdf>; *Winning the Race*, *supra* note 4.

¹⁴ *Nguyen*, *supra* note 2; see also *Global DRAM and HBM Market Share: Quarterly*, Counterpoint Research (June 8, 2026), <https://counterpointresearch.com/en/insights/global-dram-and-hbm-market-share>.

¹⁵ See Angela Lambert, *Dell Technologies World 2026 Highlights Dell’s Growing Leadership in Enterprise AI Infrastructure*, TBR Insight Ctr. (May 20, 2026), <https://tbri.com/special-reports/dell-technologies-world-2026-highlights-dells-growing-leadership-in-enterprise-ai-infrastructure/> (chart showing SMCI with 25.0% of OEM AI server and systems market share in 2025).

¹⁶ See Exec. Order No. 14409 (reaffirming “policy of the United States”); Exec. Order No. 14179 (tying

Netlist’s reliance on *Non-Volatile Memory Devices* is misplaced as well; the accused products in that case were flash memory devices and downstream products “including personal computers, USB flash drives, microcontroller units, multi-function printers, and air conditioners”—a far cry from the servers powering AI and enterprise data workloads—and the excluded supply could be readily replaced by competitors.¹⁷

Here, by contrast, SMCI plays a vital role both in onshoring manufacturing and in supporting the AI and data center ecosystems, particularly through its DCBBS offering. Netlist’s requested remedial relief thus would be antithetical to national policy, in addition to harming SMCI’s customers across the U.S. economy—including the government—and causing adverse downstream effects on U.S. consumers. After all, SMCI is uniquely positioned as a U.S. manufacturer to deliver secure AI solutions to the government,¹⁸ SMCI’s direct customers use SMCI’s products to run data-intensive applications that advance public welfare by any metric,¹⁹ and U.S. consumers rely on the technology that SMCI’s products support and enable through rapid computing power deployment.²⁰ This is a dilemma of Netlist’s own making.

“global AI dominance” to “human flourishing, economic competitiveness, and national security”); Exec. Order No. 14318 (declaring “priority” to “facilitate the rapid and efficient buildout” of AI infrastructure); Exec. Order No. 14320 (announcing “coordinated national effort” to support AI); *Cyber Strategy*, *supra* note 13, at i, 3, 5, 6 (ensuring “America remains unrivaled in cyberspace”); *National Policy Framework*, *supra* note 13, at 3 (supporting AI buildout and uniform federal AI policy that preempts state laws “contrary to the [U.S.’s] national strategy to achieve global AI dominance”); *Winning the Race*, *supra* note 4, at 1, 7, 20.

¹⁷ Comm’n Op. at 10, 64, *Certain Non-Volatile Memory Devices*, Inv. No. 337-TA-1046 (Oct. 26, 2018).

¹⁸ See, e.g., *Operationalizing AI in Government: RAG and Trusted Infrastructure as the Fastest Path to Mission Value*, SMCI (2025), https://www.supermicro.com/white_paper/white_paper_government_AI_RAG_SMCI_NVIDIA.pdf (describing capacity to offer “a U.S.-designed, full-stack platform” for agencies).

¹⁹ See *xAI Colossus*, SMCI, <https://www.supermicro.com/en/featured/xai-colossus> (describing work with xAI to build Colossus GPU); *Lambda Builds AI Factories with Supermicro and NVIDIA Blackwell GPUs*, SMCI, <https://www.supermicro.com/en/success-story/lambda> (describing work with Lambda on drug discovery); *Accelerating Adoption of Edge AI*, SMCI (2024), https://www.supermicro.com/white_paper/white_paper_Edge_AI_SMCI_NVIDIA.pdf (describing Edge AI uses including workplace safety and medical diagnostics); *Lawrence Livermore National Laboratory Expands Corona Cluster to Perform Additional COVID-19 Research*, SMCI (2020), https://www.supermicro.com/CaseStudies/Success_Story_LLNL.pdf (describing work with LLNL). SMCI customers xAI and Tesla also contract with the government and use their SMCI-supported products to deliver technologies like orbital AI and autonomous robotics. See Press Release, GSA and xAI Partner on \$0.42 per Agency Agreement to Accelerate Federal AI Adoption (Sept. 25, 2025), <https://www.gsa.gov/about-gsa/newsroom/news-releases/gsa-xai-partner-to-accelerate-federal-ai-adoption-09252025>; *Automated Vehicles for Safety*, NHTSA, <https://www.nhtsa.gov/vehicle-safety/automated-vehicles-safety>; Tesla, Inc., Annual Report (Form 10-K) 2–3 (Jan. 28, 2026).

²⁰ See, e.g., Juan Font, *No Turning Back the Digital Clock: Why Data Centers Matter Far More Than You Think*, Forbes (Aug. 19, 2025), <https://www.forbes.com/councils/forbestechcouncil/2025/08/19/no-turning-back-the-digital-clock-why-data-centers-matter-far-more-than-you-think/>.

Netlist asserts that “[t]here will be **no disruption** to the relevant markets” and “**no shortage** of like . . . products” because “Netlist and its licensees SK hynix and Samsung, as well as other third parties, have the capacity to replace the volume of articles, if excluded from the U.S., in a commercially reasonable time.” Netlist PI Stmt. at 4, 5 (emphasis added). That would be news to Netlist’s licensees. Samsung recently told the Commission that “[t]he potential harm to the public interest” from *Netlist II* “has gotten substantially worse” since *Netlist I*, as “the AI-driven demand for memory continues to significantly exceed available capacity and is unlikely to normalize **until 2030 at the earliest**.”²¹ Around the same time, SK hynix forecast that the memory shortage would run “[u]ntil 2030,” and sources reported that “the company’s existing lines [were] already saturated . . . as available capacity has fallen to near zero.”²² Micron has offered a similarly bleak outlook.²³ And even Netlist has struck a like tone with its investors.²⁴

Worse, the **current** supply crisis has been driven by the explosive pace of investments in AI, and new projections are released every quarter showing that pace **increasing**. To the extent manufacturers cannot meet the present demand created by present investments, there is no reason to expect that they will be able to meet the **higher** future demand created by **higher** future investments.²⁵ It is no answer that “consumers generally do not purchase the Accused Products directly,” Netlist PI Stmt. at 5, as the adverse effects of Netlist’s requested orders would unquestionably reach consumers through higher prices for virtually all electronic devices and the degradation of performance across the vast end uses of the accused products.²⁶

²¹ Samsung PI Stmt. at 1, *Netlist II* (emphasis added).

²² Luke James, *SK hynix to double memory wafer capacity within five years, chairman says—AI-driven shortage will persist until at least 2030*, Tom’s Hardware (June 2, 2026), <https://www.tomshardware.com/pc-components/dram/sk-hynix-to-double-memory-wafer-capacity-over-five-years>.

²³ Micron Tech., Inc., *Financial Results: FQ3 2026* at 4, 6–7 (June 24, 2026), <https://investors.micron.com/static-files/2354ecda-77a0-4ddd-8462-a631eb491356> (noting DRAM demand “continues to significantly exceed industry supply” and “tight conditions” will “persist beyond . . . 2027”).

²⁴ Netlist, Inc., Quarterly Report (Form 10-Q) 33 (Aug. 11, 2026) (disclosing that “these dynamics [will] continue until additional industry fabrication capacity becomes available, potentially beginning in 2028”).

²⁵ These conditions are only exacerbated by the shift towards HBM, as one of Netlist’s sources confirms. See U.S. DRAM Market (July 2026), <https://www.kingsresearch.com/report/us-dram-market-3118> (reporting that Samsung, SK hynix, and Micron “account for more than 95% of the global DRAM market and have tightened DRAM supply owing to shifting production capacity towards high-margin” HBM).

²⁶ See, e.g., Christopher Mims, *The Global Memory-Chip Shortage Will Cost Us All*, Wall. St. J. (Jan. 16, 2026), <https://www.wsj.com/tech/ai/memory-ram-shortage-2026-f55324b0> (warning of “delayed data centers, higher prices for laptops, TVs and other consumer electronics, and possible [auto] chip shortages”).

Dated: August 25, 2026

Respectfully submitted,

By: /s/ Richard S. Zembek

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**COUNSEL FOR PROPOSED RESPONDENT
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CERTIFICATE OF SERVICE

I, Annette R. Devereaux, hereby certify that on August 25, 2026, the foregoing document was filed and served upon the following parties as indicated:

The Honorable Lisa R. Barton Secretary to the Commission U.S. International Trade Commission 500 E Street, SW, Room 112 Washington, DC 20436	☐ Via First Class Mail ☐ Via Courier (UPS) ☐ Via Hand Delivery ☐ Via Email ☒ Via EDIS
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On Behalf of Proposed Respondent Super Micro Computer, Inc.

Dated: August 25, 2026

/s/ Annette R. Devereux

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